

HOUSE No. 3047

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act restoring the harbors and inland waters maintenance fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/6/2025</i>

HOUSE No. 3047

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 3047) of Tackey Chan relative to restoring the harbors and inland waters maintenance fund. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2734 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act restoring the harbors and inland waters maintenance fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13 of Chapter 64A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the section and inserting in place thereof the
3 following section:-

4 Section 13. All sums received from the excise imposed on aviation fuel, and related
5 penalties, forfeitures, interest, costs of suits and fines, less all amounts for reimbursement under
6 sections 7 and 7A, shall be credited to the Commonwealth Transportation Fund and may be used
7 for airport development projects approved and carried out at airports and landing facilities under
8 49 U.S.C. App. s 2210; and all other sums received from the excise imposed in section 4, and
9 related penalties, forfeitures, interest, costs of suits and fines, less all amounts for reimbursement
10 under said sections 7 and 7A, shall be credited as follows: (i) 99.80 per cent shall be credited to

the Commonwealth Transportation Fund to be used for transportation-related purposes; (ii) 0.15 per cent shall be credited to the Inland Fisheries and Game Fund established in section 2C of chapter 131; and (iii) 0.05 per cent shall be credited to the Harbors and Inland Waters Maintenance Fund.

SECTION 2. Chapter 91 of the General Laws is hereby amended by inserting after section 10A the following section: -

Section 10A $\frac{1}{4}$. There is hereby established a fund to be known as the Harbors and Inland Waters Maintenance Fund to which shall be credited such sums as are determined the provisions of section thirteen of chapter sixty four A, sections forty-two, forty-three, forty-five, forty-six A and forty-nine of chapter ninety-one and any sums received by the commonwealth from the federal government on account of the activities of the department of conservation and recreation relative to (a) the continuous maintenance dredging; (b) cleaning of all the areas within the harbors, inland waters and great ponds of the commonwealth include the removal of sunken and abandoned vessels, derelict piers and any other obstacles deemed to be hazardous to navigation; (c) maintenance of state piers; and (d) for the purpose of carrying out the provisions of section thirty-one. All monies in said fund shall be subject to appropriation, and shall be used only for the purpose of continuous maintenance dredging and cleaning of harbors, inland waters and great ponds of the commonwealth, including removal of sunken and abandoned vessels, derelict piers and any other obstacles deemed to be hazardous to navigation, by the department of conservation and recreation.